

25STCV09375 25STCV09375

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-08-06

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C309%2C08%2F06%2F2026

Source SHA-256: 6cb5018e98f9fc7ac3e60d71b2163d1293a71a386ab5e4704b1b847623877901

Case Number: 25STCV09375 Hearing Date: August 6, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT

309

TENTATIVE RULING

MALESHA HOLMES

vs.

AMERICAN HONDA MOTOR CO.

Case

No.: 25STCV09375

Hearing Date: August 6, 2026

Defendant's

motion to compel Plaintiff's deposition is MOOT. Plaintiff is sanctioned, jointly and severally with counsel, \$980.00.

On

3/28/2025, Plaintiff Malesha Holmes (Plaintiff) filed suit against

American Honda Motor Co. Inc. (Defendant), alleging violations of the

Song-Beverly Warranty Act.

On

4/22/2026, Defendant moved to compel Plaintiff's deposition. On 8/3/2026, Plaintiff's counsel provided Defendant with three dates for deposition: August 6, 10, 11, or 12, 2026.

Discussion

While

Plaintiff's opposition makes clear that the substance of the motion is moot, the Court wants to make it clear it is ordering Plaintiff's deposition to proceed on one of those days. If Plaintiff's deposition does not proceed as scheduled due to Plaintiff's or Plaintiff's counsel's unavailability, the Court will entertain a motion for evidentiary sanctions (exclusion) and/or terminating sanctions.

However,

what remains in this matter is the question of sanctions. While Plaintiff has since provided dates for deposition, it does appear this motion was necessary to prompt that action. Accordingly, sanctions are still warranted.

Based

on the foregoing, Defendant's motion to compel Plaintiff's deposition is moot. Plaintiff is sanctioned, jointly and severally with counsel, \$980.

It is so ordered.

Dated: August
, 2026.

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must

identify the party submitting on the tentative.

If all parties to a motion submit, the court will adopt this

tentative as the final order. If the department

does not receive an email indicating the parties are submitting on the

tentative and there are no appearances at the hearing, the motion may be placed

off calendar. For more information, please contact the court clerk at (213)

633-0517.